

irrelevant, false, or improper matter inserted in any pleading, [¶] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

Defendant contends Plaintiff fails to allege a sufficient statutory basis for attorney fees, so the request for fees is improper and should be stricken. (Code Civ. Proc., § 1021.) The California Supreme Court has explained the general rule for recovery of attorney fees as follows:

California follows what is commonly referred to as the American rule, which provides that each party to a lawsuit must ordinarily pay his own attorney fees. [Citations.] The Legislature codified the American rule in 1872 when it enacted Code of Civil Procedure section 1021, which states in pertinent part that "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties...."

(*Trope v. Katz* (1995) 11 Cal.4th 274, 278–279.)

Civil Code section 47.1 provides a statutory exception permitting the recovery of attorney fees in a defamation case for a prevailing defendant accused of making a communication "without malice, regarding an incident of sexual assault, harassment, or discrimination" that is privileged under Civil Code section 47. Another fee-shifting statute, Code of Civil Procedure section 1021.5, provides for an award of attorney fees to a successful party in an action that results "in the enforcement of an important right affecting the public interest." Plaintiff opposes the motion to strike by suggesting that even if the FAC is imperfectly pleaded, she can amend the FAC to include allegations that may support recovery of attorney fees under applicable statutes, such as the private attorney general doctrine of Code of Civil Procedure section 1021.5.

The court agrees that Plaintiff's action could potentially vindicate important rights affecting the public interest, or Plaintiff may be able to plead with greater specificity the grounds for recovery of her attorney fees. Therefore, it would be premature at this juncture to hold that Plaintiff is not entitled to attorney fees as a matter of law. Therefore, the court denies the motion to strike the prayer for attorney's fees without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/2/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Giumarra Brothers Fruit Co. v. Mora***
Superior Court Case No. 23CECG03466

Hearing Date: June 4, 2026 (Dept. 503)

Motion: (1) Motion for Leave to Amend;
(2) Motion to Compel Financials

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 6/3/2026.
(Judge's initials) (Date)